

Ruknuddin Ahmad Parvez v. Uttar Pradesh Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 21 October 2024 · 2024:AHC:167185-DB · WRIT - C No. 33547 of 2024 · **Writ disposed; tariff dispute left to clause 6.5**

HEADNOTE

Writ seeking permanent disconnection of Service Connection No. 56284459000 and correction of the August 2024 bill (LMV-2 instead of LMV-1) was disposed of without deciding either prayer. The consumer was left at liberty to move a proper disconnection application and to raise the tariff grievance under clause 6.5 of the U.P. Electricity Supply Code, 2005, within two weeks, to be decided in accordance with law within three weeks. Coercive action was restrained only if 50 percent of the arrears was deposited within two weeks; otherwise the protection stood discharged.

FACTUAL SUMMARY

Ruknuddin Ahmad Parvez holds Service Connection No. 56284459000. He asked the Allahabad High Court to direct Uttar Pradesh Power Corporation Limited to disconnect supply to his premises permanently and to correct the bill for August 2024, which had classified that supply under LMV-2 instead of LMV-1. The Electricity Department told the Court that a tariff dispute could be raised under clause 6.5 of the Supply Code, 2005, and that a proper application for permanent disconnection would be considered in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

tariff-category dispute on a current bill

HOLDING

A grievance that the August 2024 bill applied LMV-2 instead of LMV-1 is to be raised by an application under clause 6.5, filed within two weeks and decided in accordance with law within three weeks of filing. The writ was disposed of without adjudicating the tariff. Coercive recovery was restrained in the meantime only if 50 percent of the arrears was deposited within two weeks, and that protection stands discharged automatically if the deposit is not made or the clause 6.5 application is not filed within two weeks. ¶ 3-7

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The complaint that the August 2024 bill charged LMV-2 instead of LMV-1 was not decided in the writ and was left to an application under clause 6.5. ¶ 2-6

article-226-alternate-remedy-up-supply-code-6.5 The Division Bench disposed of the writ on the submission that the tariff dispute lay under clause 6.5, granting liberty to apply and a conditional restraint on coercive action. ¶ 2-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE AUGUST 2024 BILL WRONGLY APPLIED LMV-2 INSTEAD OF LMV-1

Left to a clause 6.5 application to be decided in accordance with law. ¶ 3-4

NOT DECIDED — WHETHER PERMANENT DISCONNECTION OF SERVICE CONNECTION NO. 56284459000 SHOULD BE GRANTED

Liberty to file a proper application complying with any stipulated requirements, to be decided in accordance with law.

¶ 3-4

